**MERCER & HALE LLP**
Attorneys at Law · 10 Court Sq, Riverton · (555) 010-8600

Grant Mercer, Partner
Our file MH-26-1187

December 1, 2026

**VIA U.S. MAIL**

Elijah Thorne, Esq.
LSH Law Group
500 Commerce St, Suite 1200
Riverton

**Re:** *John Doe v. Robert Smith*, State Court of Riverton County, Civil Action No. 26-CV-04417
Your file: LSH-2026-MVA-770412 · Insurer claim: Keystone Mutual KM-26-440871

Dear Mr. Thorne:

On behalf of Grant Mercer, enclosed please find the following discovery, served upon you this date by U.S. Mail:

1. Defendant Robert Smith's First Interrogatories to Plaintiff John Doe (Nos. 1–25);
2. Defendant Robert Smith's First Requests for Production of Documents to Plaintiff (Nos. 1–30); and
3. Defendant Robert Smith's First Requests for Admission to Plaintiff (Nos. 1–15).

Your client's responses are due December 31, 2026. Please have Mr. Doe sign the verification page for his interrogatory answers before a notary, and include executed medical authorizations for each provider identified in his answers.

Mr. Mercer also asked me to request dates in February 2027 on which Mr. Doe is available for his deposition. We anticipate proceeding by videoconference.

Please do not hesitate to contact me if you have any questions.

Sincerely,

Paula Ostrander

Paula Ostrander
Paralegal to Grant Mercer
Mercer & Hale LLP

Enclosures (3)
cc: Keystone Mutual Insurance, Attn: Dana Whitfield (claim KM-26-440871) (w/o encl.)

**IN THE STATE COURT OF RIVERTON COUNTY**

JOHN DOE,
Plaintiff,

v.

ROBERT SMITH,
Defendant.

CIVIL ACTION
**No. 26-CV-04417**

**DEFENDANT ROBERT SMITH'S FIRST INTERROGATORIES TO PLAINTIFF JOHN DOE**

TO: Plaintiff John Doe, by and through his attorney of record, Elijah Thorne, LSH Law Group.

Defendant Robert Smith, pursuant to the applicable rules of civil procedure, requests that Plaintiff answer the following Interrogatories separately, fully, in writing and under oath, and serve the answers on the undersigned within thirty (30) days after service hereof.

**Definitions and instructions.** "You" and "Plaintiff" mean John Doe. "Collision" means the motor vehicle collision of February 6, 2026, at the intersection of Maple Hollow Road and Birch Avenue, Riverton, described in the Complaint. "Identify," as to a person, means to state the full name, last known address and telephone number; as to a document, its date, author, recipient, type and present custodian. "Health care provider" includes any physician, chiropractor, physical therapist, hospital, clinic, urgent care, pharmacy, counselor or other practitioner. If you object to any part of an Interrogatory, answer the remainder. These Interrogatories are continuing; supplement your answers as required by law.

## Interrogatories

1. State your full name and any other names you have used, your date of birth, the last four digits of your Social Security number, your driver's license number, and each address at which you have resided during the past ten (10) years with the dates of residence.
2. Identify each person who answered or assisted in answering these Interrogatories, and each document consulted.
3. Describe in detail how the Collision occurred, including where you were seated, the direction of travel of each vehicle, whether the vehicle in which you were riding stopped before entering the intersection, and what you observed immediately before and at the moment of impact.
4. State the purpose of the trip during which the Collision occurred, its origin and destination, and describe your relationship with Kevin Alvarez, including any carpool or ride-sharing arrangement.
5. State whether you were wearing a seatbelt at the moment of the Collision, and identify every person and document with knowledge of whether you were wearing a seatbelt.
6. Identify every person who witnessed the Collision or its immediate aftermath, or who claims knowledge of the facts of the Collision or your injuries, and summarize the knowledge you believe each has.
7. Identify every written, recorded or transcribed statement obtained from any person concerning the Collision, including any statement you gave to an insurer, and identify its custodian.
8. Identify every photograph, video recording (including any doorbell, security or dash camera recording) or electronic data depicting or recording the Collision, the scene, the vehicles or your injuries, and identify its custodian.
9. Describe each physical, mental or emotional injury you claim resulted from the Collision, and state whether you claim that any injury is permanent.
10. Identify each health care provider who has examined or treated you since the Collision, and for each state the dates of treatment, the nature of the treatment and the amount charged.
11. State each reason you did not seek medical treatment between February 6, 2026 and the date of your first medical treatment after the Collision, and describe everything you did to treat your symptoms during that period.

12. Identify each health care provider who examined or treated you during the ten (10) years before the Collision, including any chiropractor, and for each state the dates and the condition treated.
13. State whether, before the Collision, you ever experienced injury, pain or other complaints involving your neck, back, shoulders or arms, and if so, describe each such complaint, its cause and its treatment.
14. Identify each scheduled medical, chiropractic or physical therapy appointment you missed, cancelled or rescheduled after the Collision, and state the reason for each.
15. Itemize each element of special damages you claim, including medical expenses, prescription expenses, lost wages and property damage, stating for each the amount, the payee and whether it has been paid and by whom.
16. Identify every source from which you have received or claimed payment for any damages claimed (including medical payments coverage, health insurance, uninsured motorist coverage and any other insurance), the amount received, and any lien, subrogation or reimbursement interest asserted.
17. Identify each letter of protection, lien or other agreement under which any health care provider has deferred payment of its charges pending the outcome of your claim.
18. Identify each employer for whom you have worked during the past ten (10) years, stating your position, dates of employment, rate of pay and reason for leaving.
19. If you claim lost wages or lost earning capacity, state each date of work missed, your rate of pay, the method of calculation, and identify every document supporting the claim.
20. Identify every motor vehicle collision, fall, sports injury, work injury, workers' compensation claim, insurance claim or lawsuit in which you were involved before or after the Collision.
21. Identify each social media account, messaging application or online platform (including Facebook, Instagram, TikTok, X and Snapchat) you have used since February 6, 2025, stating the user name for each.
22. Identify each person (other than your attorneys) with whom you communicated by text message, email or social media about the Collision or your physical condition between February 6, 2026 and February 20, 2026.
23. Identify every policy of insurance under which you have made or may make a claim for the injuries or losses alleged, including the policy number, the insurer, the coverage claimed and the status of the claim.
24. Describe the damage to your 2019 Honda Civic, the repairs made, all amounts paid for repair, towing, storage and rental, and state the factual basis and amount of any claim for loss of use or diminished value.
25. Identify each person you expect to call as an expert witness at trial, and for each state the subject matter, the substance of the facts and opinions to which the expert is expected to testify, and a summary of the grounds for each opinion.

This 1st day of December, 2026.

Grant Mercer

Grant Mercer · MERCER & HALE LLP
10 Court Sq, Riverton · (555) 010-8600
*Attorneys for Defendant Robert Smith*

**VERIFICATION**

Personally appeared before the undersigned officer, duly authorized to administer oaths, JOHN DOE, who after being duly sworn deposes and says that the foregoing answers to Defendant's First Interrogatories are true and correct to the best of his knowledge, information and belief.

_____
John Doe, Plaintiff

_____
Notary Public · Sworn to and subscribed before me this ___ day of _____, 20__

**IN THE STATE COURT OF RIVERTON COUNTY**

JOHN DOE,
Plaintiff,

v.

ROBERT SMITH,
Defendant.

CIVIL ACTION
**No. 26-CV-04417**

**DEFENDANT ROBERT SMITH'S FIRST REQUESTS FOR PRODUCTION OF DOCUMENTS TO PLAINTIFF JOHN DOE**

TO: Plaintiff John Doe, by and through his attorney of record, Elijah Thorne, LSH Law Group.

Defendant Robert Smith, pursuant to the applicable rules of civil procedure, requests that Plaintiff produce the following documents and things for inspection and copying at the offices of Mercer & Hale LLP, 10 Court Sq, Riverton, within thirty (30) days after service hereof, and serve a written response to each Request. Production of legible copies, or of electronic files in native format with metadata intact where so requested, will satisfy this request. The definitions in Defendant's First Interrogatories apply. "Document" includes electronically stored information. These Requests are continuing.

**Documents Requested**

1. All documents identified, referred to or relied upon in answering Defendant's First Interrogatories.
2. All medical records, reports, notes, imaging reports and bills of every health care provider who has examined or treated you for any injury you attribute to the Collision.
3. All medical and chiropractic records of any treatment you received during the ten (10) years before the Collision, including all records of any chiropractic care you received in 2021.
4. The enclosed authorizations for the release of medical, pharmacy, employment and insurance records, executed by you, one for each provider and entity identified in your answers to Interrogatories 10, 12, 18 and 23.
5. All photographs of the scene of the Collision, the vehicles involved or your injuries.
6. A complete, unedited copy in its original native format, with all metadata, of every video recording of the Collision, including any doorbell camera recording from 2214 Maple Hollow Rd, Riverton, and all documents reflecting its retrieval, copying and storage.
7. All written, recorded or transcribed statements of any witness or party concerning the Collision.
8. All documents received from or exchanged with the Riverton Police Department, Riverton Fire EMS or any traffic court concerning the Collision.
9. All documents relating to whether you were wearing a seatbelt at the time of the Collision, including any event data recorder or airbag control module download from the 2020 Ford Escape.
10. All estimates, supplements, repair invoices, photographs and payment records relating to damage to your 2019 Honda Civic.
11. All rental vehicle agreements, invoices and payment records relating to the Collision.
12. All valuation reports, diminished value appraisals and other documents supporting any claim for diminished value.
13. All documents supporting any claim for loss of use of a vehicle, including documents showing the days for which you claim you were without a vehicle.
14. Your pay stubs, W-2 forms and 1099 forms for the years 2024, 2025 and 2026.
15. All documents from Northgate Distribution or any other employer relating to your attendance, absences, call-outs, work restrictions or wages from January 1, 2026 to the present.
16. Your federal and state income tax returns, with all schedules, for the years 2023, 2024 and 2025.

17. All pharmacy records, receipts and prescription histories for any medication, prescription or over-the-counter, that you attribute to the Collision.
18. All explanations of benefits, medical payments ledgers and payment records of any insurer or health plan that has paid any charge for your treatment.
19. All notices of lien, reimbursement or subrogation, all letters of protection, and all correspondence with any lienholder or health care provider concerning payment of charges.
20. All calendars, diaries, journals, logs or notes kept by you or on your behalf concerning the Collision, your injuries, your treatment or your activities since February 6, 2026.
21. All text messages, emails and social media messages sent or received by you between February 6, 2026 and February 20, 2026 that refer to the Collision, your physical condition, pain or medical treatment.
22. All posts, photographs, videos, comments and check-ins on any social media account you have used since February 6, 2026 that depict or describe physical activity, travel, recreation, work or your physical condition.
23. A complete download of the account data ("Download Your Information" or equivalent) for each Facebook and Instagram account you have used, for the period February 6, 2025 to the present.
24. All documents relating to any prior or subsequent accident, injury, insurance claim, workers' compensation claim or lawsuit identified in your answer to Interrogatory 20.
25. The declarations page and policy of every insurance policy identified in your answer to Interrogatory 23, including your own automobile policy, and all coverage correspondence with each insurer.
26. All recorded or written statements you gave to any insurance company concerning the Collision.
27. All appointment schedules, attendance logs, no-show notices, cancellation records and missed-visit notices of any health care provider who has treated you since the Collision.
28. The curriculum vitae, report, notes, billing records and complete file of each expert witness you expect to call at trial.
29. All documents supporting your claim for future medical expenses, including any written recommendation for future treatment and any estimate of its cost.
30. All documents and things you intend to introduce as exhibits or use for demonstrative purposes at any deposition, hearing or trial of this action.

This 1st day of December, 2026.

Grant Mercer

Grant Mercer · MERCER & HALE LLP
10 Court Sq, Riverton · (555) 010-8600
*Attorneys for Defendant Robert Smith*

**IN THE STATE COURT OF RIVERTON COUNTY**

JOHN DOE,
Plaintiff,

v.

ROBERT SMITH,
Defendant.

CIVIL ACTION
**No. 26-CV-04417**

**DEFENDANT ROBERT SMITH'S FIRST REQUESTS FOR ADMISSION TO PLAINTIFF JOHN DOE**

TO: Plaintiff John Doe, by and through his attorney of record, Elijah Thorne, LSH Law Group.

Defendant Robert Smith, pursuant to the applicable rules of civil procedure, requests that Plaintiff admit the truth of each of the following matters within thirty (30) days after service hereof. **Each matter of which an admission is requested is admitted unless, within thirty (30) days after service of this request, Plaintiff serves a written answer or objection addressed to the matter, signed by Plaintiff or his attorney.** Any denial must fairly meet the substance of the requested admission; a lack of information or knowledge may not be given as a reason for failure to admit or deny unless Plaintiff states that he has made reasonable inquiry. The definitions in Defendant's First Interrogatories apply.

**Requests for Admission**

Admit that:

1. You did not receive medical treatment of any kind between February 6, 2026 and February 20, 2026.
2. You declined transport by ambulance from the scene of the Collision.
3. You were not wearing a seatbelt at the time of the Collision.
4. The 2020 Ford Escape in which you were riding entered the intersection of Maple Hollow Road and Birch Avenue when it was not its turn to proceed.
5. You did not report neck pain to any health care provider before February 20, 2026.
6. You worked your scheduled shifts at Northgate Distribution on February 18 and February 19, 2026.
7. In 2021 you received chiropractic treatment for complaints involving your spine.
8. The MRI of your cervical spine performed on March 13, 2026 showed degenerative changes.
9. You did not attend physical therapy appointments scheduled for April 3, April 7, April 9 and April 14, 2026.
10. No health care provider has recommended surgery for any injury you attribute to the Collision.
11. You have not missed any work at Northgate Distribution because of the Collision after May 18, 2026.
12. Keystone Mutual Insurance paid $1,260.00 for a rental vehicle for your use following the Collision.
13. Keystone Mutual Insurance paid $9,255.00 for the repair of your 2019 Honda Civic.
14. Your 2019 Honda Civic was not a total loss.
15. Some or all of the medical charges you claim in this action have been paid by Harbor Point Insurance or Peach State Health Plan.

This 1st day of December, 2026.

Grant Mercer

Grant Mercer · MERCER & HALE LLP
10 Court Sq, Riverton · (555) 010-8600
*Attorneys for Defendant Robert Smith*

**IN THE STATE COURT OF RIVERTON COUNTY**

JOHN DOE,
Plaintiff,

v.

ROBERT SMITH,
Defendant.

CIVIL ACTION
**No. 26-CV-04417**

## CERTIFICATE OF SERVICE

I hereby certify that I have this day served a true and correct copy of the foregoing **Defendant Robert Smith's First Interrogatories to Plaintiff John Doe**, **First Requests for Production of Documents to Plaintiff John Doe** and **First Requests for Admission to Plaintiff John Doe**, with blank authorizations, upon counsel for Plaintiff by depositing the same in the **United States Mail**, first-class postage prepaid, addressed as follows:

Elijah Thorne, Esq.
LSH Law Group
500 Commerce St, Suite 1200
Riverton

This 1st day of December, 2026.

Grant Mercer

Grant Mercer · MERCER & HALE LLP
*Attorneys for Defendant Robert Smith*